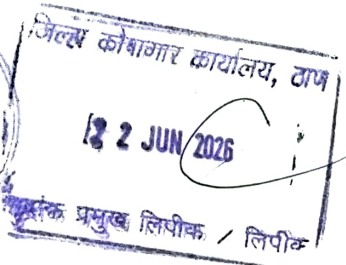




महाराष्ट्र MAHARASHTRA



स्तावा प्रकार-
स्त नोंदणी करणार आहे का?
मुद्रांक विकत घेणाऱ्याचे नाव-
मना व सहि-
दुसऱ्या पक्षकाराचे नाव-
मुद्रांक शुल्क रक्कम-
मुद्रांक दिव्हेल्याची सही-
मुद्रांक विक्रीचे ठिकाण- रुज जं. २२९, फ्लॅट- १७,
जय किसन, ऐरोली, नवी मुंबई. मो.: ९३२२२४६५४६
गरवाना मुद्रांक क्रमांक- ६/९२
या कारणासाठी ज्यांनी मुद्रांक खरेदी केलेली त्यांची त्याच कारणासाठी
मुद्रांक खरेदी केल्यापासून ६ महिन्यात वापरणे बंधनकारक आहे



EW 592160

Shedak

PROJECT MANAGEMENT CONSULTANCY AGREEMENT DATED 2ND JULY 2026
BETWEEN MAYANK COOPERATIVE HOUSING SOCIETY LTD AND M/S
VASTOPATI DESIGN GROUP FOR PROPOSED REDEVELOPMENT PROJECT OF
MAYANK COOPERATIVE HOUSING SOCIETY LTD SITUATED AT PLOT NO 5
SECTOR 5 AIROLI NAVI MUMBAI.

Chairman	Secretary	Treasurer	Mr. P. K. MADHAV
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Architects
Ar P K MADHAV
A-304/304, Shiv Chambers, Plot No-21,
Sector-11, CBD Belapur, Navi Mumbai.

Chairman	Secretary	Treasurer	Mr. P. K. MADHAV
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PROJECT MANAGEMENT CONSULTANCY AGREEMENT

BETWEEN

1. Name of the Society	MAYANK CO-OPERATIVE HOUSING SOCIETY LTD hereinafter referred to as ' The Society ' (which expression shall, unless repugnant to the context or meaning thereof, be deemed to include its present and future members, the managing committee from time to time, successors, and permitted assigns)
Building(s)	Building No.AL-06/09 to AL-06/12
PAN No. of The Society	AAXAM2179C
Nature of 'The Society'	Co Operative Housing Society
Registered under	The Maharashtra Co Operative Societies Act,1960
Bearing Registration Number	N.B.O.M/CIDCO/HSG/(T.C)/10537/D.R/Dated 2024-2025
Registered Office Address	Building No. AL-06/09 to AL-06/12, Plot No-5, Sector-5, Airoli, Navi Mumbai, Thane 400708
Represented through its	Office Bearers being members of the 'Managing Committee' of 'The Society'
Designation	Name
The Chairman	Mr. Prashant Pawar
The Secretary	Mr. Bhaskar Sawant
The Treasurer	Mr. Sunil Suryavanshi
on behalf of	'The Existing Member(s)' of Building No. AL-06/09 to AL-06/12, Plot No-5, Sector-5, Airoli, Navi Mumbai, Thane 400708 of



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	MAYANK COOPERATIVE HOUSING SOCIETY LTD.
Project	Proposed Redevelopment Project.
Being the Party of	'The Party of the First Part'

AND

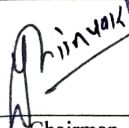
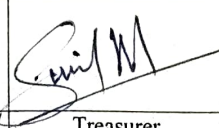
2. Name of the Firm	M/S VASTOSPATI DESIGN GROUP , being the appointed 'Project Management Consultant' for the proposed redevelopment project of 'The Society' hereinafter referred to as 'The PMC/Consultant' (which expression shall unless it be repugnant to the context or meaning thereof be deemed to mean and include his respective heirs, executors, administrators, and permitted assigns)
Nature of firm	Proprietorship Firm
Represented by	Mr. P. K. MADHAV
CIN No.	NA
GST Registration No.	27AKAPP3412B1ZR
P.A.N. No.	AKAPP3412B
Registered Office Address	M/s Vastospati Design Group A305, Plot 21, Sector-11, CBD Belapur, Navi Mumbai 400614
Being the Party of	'The Party of the Second Part'

FOR

Reason for Making this Agreement	Appointment of Project Management Consultant for "Re-development project of MAYANK CO-OPERATIVE HOUSING SOCIETY LTD.
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Redevelopment of Building situated at	Building No. AL-06/09 to AL-06/12, Plot No-5, Sector-5, Airoli, Navi Mumbai, Thane 400708
Project	Proposed Redevelopment of Building No. AL-06/09 to AL-06/12, Plot No-5, Sector-5, Airoli, Navi Mumbai, Thane 400708

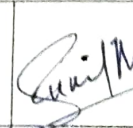
The Society and the PMC are hereinafter individually referred to as a **“Party”** and collectively referred to as the **“Parties.”**

WHEREAS:

- (A) The Society, herein, is entitled to and holds leasehold rights in respect of the land bearing Plot No. 5, admeasuring 3580.22 Sq. Mtrs., together with the multi-storied buildings constructed thereon, collectively known as “Mayank Co-Operative Housing Society Ltd.”, situated at **Plot No-5, Sector-5, Airoli, Navi Mumbai, Thane 400708** (hereinafter referred to as the **“Said Property”**). The Said Property comprises 04 buildings, being **AL-06/09 to AL-06/12** having **64** residential flats belonging to the Members of the Society.
- (B) Considering age and condition of the structures of existing buildings, the Society has decided to undertake the redevelopment of the Said Property in accordance with the applicable provisions of the Maharashtra Co-operative Societies Act, 1960, the Rules and particularly the Guidelines issued by State Government on 04/07/2019 through a competent and reliable promoter/ developer.
- (C) Since it is necessary and in the best interest of the Society to appoint a qualified and experienced Project Management Consultant (PMC) to provide end-to-end professional assistance and guidance in the entire redevelopment process and implementation of the said redevelopment project, the Society invited proposals from various PMCs. Pursuant to the RFQ, the Society received proposals from 10 PMCs, which were duly scrutinized and evaluated by the Society. Based on such evaluation, 04 PMCs were shortlisted to make presentations of their proposals before the Managing Committee & Redevelopment Committee of the Society.



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- (D) Accordingly, the shortlisted PMCs herein made a detailed presentation of their proposal, including their past experience, requisite professional skills, technical capabilities, and availability of qualified personnel and resources, before the Managing Committee & Redevelopment Committee of the Society dated 24th April 2026 . Pursuant to the said presentation and after due deliberations, the Society, in its Special General Body Meeting held on 21st June 2026, passed a resolution unanimously, thereby appointing the **M/S VASTOSPATI DESIGN GROUP** as the Project Management Consultant for undertaking redevelopment of the Society buildings and issued an Appointment Letter to the said PMC on 27 June 2026.
- (E) Accordingly, the parties to this Agreement now desire to record the terms governing their respective rights, obligations, liabilities, and mutual understanding, as set forth in the terms and conditions appearing herein below.

NOW THEREFORE, IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES AND THIS AGREEMENT WITNESSETH AS UNDER:

1. RECITALS& DEFINATIONS

(1) RECITALS TO FORM PART OF OPERATIVE PART

All the Recitals, the Annexures and the Schedules of this Agreement shall form an integral and operative part of this Agreement as if the same are set out and incorporated verbatim in the operative part and to be interpreted, construed and read accordingly and in its entirety. All the terms herein shall override/form part of all previous proposals, offers, acceptances, notices, writings and correspondence by and between the parties, herein.

(2) DEFINITIONS AND INTERPRETATION:

In this agreement, unless the context otherwise requires, the following words and phrases shall have the following meaning-

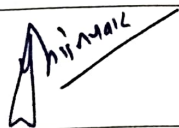
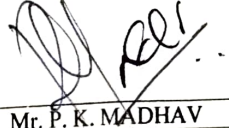
Agreement	Shall means this Project Management Consultancy Agreement executed between
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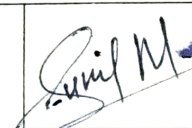
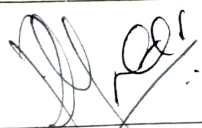
			
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	the Society and the PMC, including all Annexures, Schedules, and any amendments made in writing and signed by both Parties.
Applicable Law	Shall means all laws, statutes, rules, regulations, bye-laws, guidelines, notifications, directions, circulars, orders, decrees, judgments, or other requirements or official directives of any governmental authority, statutory authority, local body, tribunal, court, or other competent authority, whether in effect as of the date of this Agreement or amended, modified, or brought into effect at any time thereafter, that are applicable to the parties, the Said Property, the redevelopment project, or the services contemplated under this Agreement.
Authorities or Statutory Authorities	Shall means any Government, Semi-Government, CIDCO, Municipal or local authority, and any regulatory or statutory body having jurisdiction over the redevelopment project.
Approvals	Shall means all sanctions, permissions, no-objection certificates (NOCs), clearances, consents, licenses, and other authorizations required to be obtained from any competent authority for the execution of the redevelopment project.
Project Management Consultant (PMC)	Shall means M/S VASTOSPATI DESIGN GROUP appointed by the Society to provide professional consultancy services for the redevelopment of the said property as outlined in this Agreement.
PMC PERSONNEL	Shall means and includes all employees, consultants, representatives, agents, sub-consultants, engineers, architects, or any other professionals or individuals

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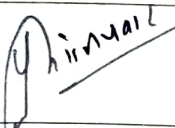
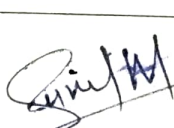
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	engaged, appointed, or deployed by the Project Management Consultant (PMC) for the purpose of rendering the services and discharging the obligations under this Agreement, whether on a permanent, temporary, part-time, or contractual basis.
Society	Shall means Mayank Co-operative Housing Society Ltd. , a registered co-operative housing society and holding leasehold rights in respect of the said property proposed for redevelopment.
Member/s	Shall mean and include a member, joint member, associate member, or provisional member, as defined under the Maharashtra Co-operative Societies Act, 1960
General Body (SGBM)	Shall means the General Body of the Society, comprising all its members, having authority to take collective decisions as per the provisions of the Maharashtra Co-operative Societies Act, 1960, and the bye-laws of the Society.
Quorum	Shall means the minimum number of members required to be present at a General Body Meeting for it to be validly convened and conduct business, as prescribed under the Maharashtra Co-operative Societies Act, 1960, and the bye-laws of the Society.
Developer/Promoter	Shall mean any individual, partnership firm, limited liability partnership, or company, duly selected and appointed by the Society through due process in accordance with the guidelines issued under Section 79A of the Maharashtra Co-operative Societies Act, 1960, for the purpose of redevelopment of the Society's



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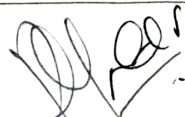
			
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	property.
Redevelopment Project	Shall mean the entire project of redevelopment of the existing buildings of the Society to be undertaken on the said property, including demolition of existing structures, planning, designing, obtaining all statutory approvals and permissions, construction of new buildings, provision of temporary alternate accommodation or payment of rent in lieu thereof, and allotment of permanent premises to the members, to be carried out by the Developer / Promoter in accordance with applicable laws, rules, and regulations.
New Building	Shall mean the building(s) to be newly constructed by the Developer / Promoter in the Redevelopment Project, by demolishing the existing building(s) of the Society and utilising the full permissible development potential of the said property, in accordance with the sanctioned plans and applicable laws.
Project Timeline	Shall means the time schedule, including milestones and deadlines for various stages of the project, as agreed between the Society and the Developer, which the PMC shall monitor, report and ensure upon.
Scope of Work	Shall means the detailed list of services, duties, and responsibilities of the PMC as set out in Annexure A enclosed with this Agreement and forming an integral part of the Agreement.
Force Majeure	Shall means any event or circumstance beyond the control of either Party which prevents or materially delays the performance of any part of this Agreement, including but not limited to

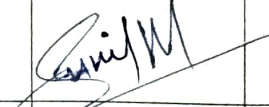
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		natural disasters, war, riots, strikes, lockdowns, or any order of a competent court or authority.
Defect Period	Liability	Shall mean the period of five (5) years from the date of handing over possession of the New Building to the Society and/or its members, during which the Developer shall be liable to rectify, at its own cost and within the time prescribed under the Real Estate (Regulation and Development) Act, 2016, any structural or workmanship defects or deficiencies brought to its notice.
The Guidelines		Shall mean the Guidelines dated 04/07/2019 issued under Section 79(A) of the MCS Act for the redevelopment of co-operative housing societies.
MOFA		Shall mean the Maharashtra Ownership Flats (Regulation of the Promotion of Construction, Sale, Management and Transfer) Act, 1963.
RERA		Shall mean the Real Estate (Regulation and Development) Act, 2016 together with the rules, regulations, notifications, amendments, and re-enactments made there under from time to time.
UDCPR 2020		Shall mean the Unified Development Control and Promotion Regulations, 2020 and any modifications, amendments, or replacements issued from time to time under the provisions of the Maharashtra Regional and Town Planning Act, 1966.
RERA Carpet Area		Shall mean the carpet area as defined under the Real Estate (Regulation and Development) Act, 2016 (RERA)
Notice		Shall mean any communication, intimation, letter, or notice issued in writing and delivered by hand, registered

			
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	post, courier or e-mail, or to particularly intimated number.
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2. APPOINTMENT:

The Society hereby appoints **M/S VASTOSPATI DESIGN GROUP** as the Project Management Consultant (PMC) for the scope of Work as detailed in **Annexure A** herewith till completion of the redevelopment project. In turn, **M/S VASTOSPATI DESIGN GROUP** accepts the said appointment and agrees to render its professional services as PMC in accordance with the terms, conditions, scope of work, and obligations set forth in this Agreement and annexures or documents forming part hereof.

3. SCOPE OF WORK AND PERFORMANCE:

- (1) PMC, acting through its personnel, shall perform the Services, as identified in the **Annexure A** attached herewith, in accordance with these terms and conditions as well as in compliance with the provisions of said Guidelines, MOFA, RERA, MCS Act and other Applicable Laws.
- (2) This Agreement shall commence from the date of execution of this agreement and shall remain in effect until the completion of the redevelopment project i.e. re-entry of the society members in the new buildings upon said property.

(3) **Schedule of Work**

Sr. No	Stage	Particulars
1.	I	8 weeks from the Date of Appointment
2.	II	6 weeks from the Approval of Feasibility Report
3.	III	Detailed Schedule of Work will be prepared in consultation with the Society and with the Selected Developer
4.	IV	12 weeks from the date of receipt of OC

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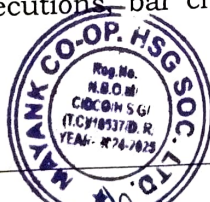
			
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4. CONSIDERATION:

- (1) The consideration for the services rendered by the PMC, as more particularly detailed in **Annexure A** of this Agreement, shall be **Rs. 86,50,000/- (in words, Rs. Eighty Six Lakhs Fifty Thousand Only) plus applicable GST.**
- (2) The said consideration shall be payable by the Society to the Project Management Consultant (PMC) in the schedule detailed herein below.

Sr. No.	Stage	Amount	Particulars
1	Stage I	Rs.5,00,000/-	Upon submission of the Final Feasibility Report.
2	Stage II (a)	Rs.5,00,000/-	Upon submission of the Final Tender Documents, including Conditions of Contract, Technical Specifications, Commercial Terms and related documents.
3	Stage II (b)	Rs.5,00,000/-	Upon submission of the Final Techno-Commercial Analysis Report of the bids of suitable Developers.
4	Stage III	Rs.1,74,584/- Per month (36 months)	During Construction Stage: For deputing the PMC Engineer for 4 days in a week for 1-2 hours duration plus for the entire day on major concreting days.
5	Stage IV	Rs.8,65,000/-	End Of Construction Stage – Occupancy Certificate, Possession, completion of all the Legal formalities as detailed in 'Annexure A' (Scope of Work) shall be released.
	Total:	Rs.86,50,000 /-	(in words, Rs. Eighty Six Lakhs Fifty Thousand Only) plus applicable GST

- (3) As detailed above, the PMC shall deploy the necessary staff with at least one project engineer and his assisting staff as well as an experienced supervisor to monitor and report the day-to-day progress of activities of planning, design, sanctions and approvals, actual executions, bar chart, quality criteria and allied matters.



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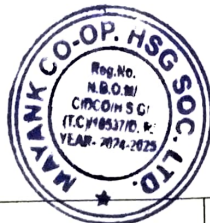
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Accordingly, the part of fees mentioned at **Sr. No. 4 in the schedule** shall be earmarked, preserved and incurred towards said purpose strictly for monitoring progress of the site construction work.

- (4) The preoperative professional fees of Stage I & II of the PMC as specified under Sr. Nos. 1, 2 and 3 in the above Schedule will be paid by the Society. The Construction & Post-Construction Stage i.e. Stage III & IV, Sr. No 4 & 5 shall be made good upon (a.) Written instructions and approval of the Authorized representatives of the Society, (b.) After due remittance from the Developer to the Society and such payment arrangement shall continue throughout the entire tenure of the Project until completion thereof, notwithstanding any delay, extension, grace period or any other circumstance affecting the Project timeline.
- (5) The authorized representatives of Society undertake to certify the payment of the PMC within 15 (fifteen) days from the receipt of an Invoice submitted by the PMC.
- (6) Notwithstanding any arrangement with the Developer, the PMC shall remain primarily accountable to the Society and shall not suspend or withdraw its services solely on account of any dispute or delay in reimbursement from the Developer, where the Society has fulfilled its obligations.
- (7) Any default, delay, non-payment, or failure on the part of the Developer shall not entitle the PMC to recover or claim any amount from the Society or its members, the Society shall safeguard the PMC's payment through its Agreement with the Developer and such liability shall remain solely and exclusively upon the Developer.

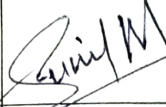
5. TIME FOR PERFORMANCE OF THE SERVICES

- (1) The PMC shall commence the Services immediately upon execution of this Agreement and shall diligently perform, supervise, monitor, and complete the same in accordance with the Project Timeline, as may be mutually agreed between the Society and the Developer appointed for the Redevelopment Project. The detailed Project Schedule, including stage-wise timelines, shall form an integral part of the Development Agreement to be executed between the Society and the Developer.



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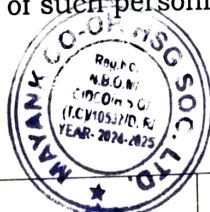
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- (2) The PMC shall be responsible for continuously monitoring and implementing the Redevelopment Project in accordance with the Project Schedule / timelines to be adhered to by the Developer, and shall promptly report to the Society any delay, deviation, or default on the part of the Developer, together with proposed corrective measures and recommendations.
- (3) The Services of the PMC under this Agreement shall continue and remain in force from the date of appointment dated 2nd July 2026 until issuance of the Occupancy Certificate, handing over of possession of the permanent premises to the members of the Society, unless terminated earlier in accordance with this Agreement.

6. PERSONNEL OF PMC:

- (1) The PMC acknowledges and agrees that it shall, at all times during the term of this Agreement, engage and maintain sufficient number of qualified, experienced, and competent personnel, employees, consultants, and/or representatives as may be reasonably necessary for the proper and timely performance of the Services in accordance with the terms of this Agreement.
- (2) In the event that any member of the PMC's Personnel ceases to be employed, or is rendered unable to perform the Services due to resignation, death, incapacity, or any other reason, the PMC shall, at the earliest and at its own cost, appoint a suitable replacement possessing qualifications and experience not less than that of the outgoing personnel.
- (3) Upon a written request from the Society, the PMC shall promptly remove and replace, at its own cost and expense, any member of its Personnel engaged in the Project whose performance, behaviour, or conduct is found to be unsatisfactory by the Society.
- (4) All personnel deployed or engaged by the PMC for the performance of the Services shall be deemed to be employees or agents of the PMC only. The PMC acknowledges and agrees that the Society shall have no privity of contract or employer-employee relationship with any such personnel, and the PMC shall be solely and exclusively responsible for all claims, liabilities, disputes, compensations, and obligations arising in connection with the employment or engagement of such personnel.



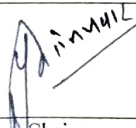
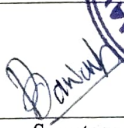
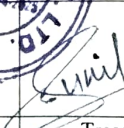
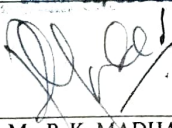
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- (5) The PMC shall ensure compliance with all applicable labour, employment, and statutory laws and shall indemnify and keep indemnified the Society against any liability, claim, penalty, or loss arising out of any non-compliance thereof. The PMC shall further ensure that its personnel maintain proper discipline and professional conduct, comply with all site safety norms and statutory requirements, and duly follow all lawful instructions issued by the Society in accordance with the terms of this Agreement
- (6) The PMC shall ensure that its personnel maintain strict confidentiality of all project-related information, documents, and data and shall not misuse or disclose the same to any third party without prior written consent of the Society.
- (7) The PMC and its personnel shall avoid any conflict of interest in relation to the Project. The PMC shall maintain proper records of all deployed personnel, including their qualifications, roles, responsibilities, and duration of deployment, and the Society shall have the right to verify such records upon reasonable notice.
- (8) The PMC shall remain fully responsible and liable for all acts, omissions, misconduct, or negligence of its personnel and shall indemnify and keep indemnified the Society against any claims, losses, damages, liabilities, or expenses arising there from.
- (9) The Employees of the PMC shall be governed and covered under the various Statutory Acts including Workmen Compensation Act, PF, Gratuity Act. etc in force and the PMC alone shall be responsible for the Injury / Death of any of their Employee and the Society or any of its Office Bearers and Members shall not be responsible for acts of negligence committed by any of the Employees / Workmen of the PMC

7. OBJECTIVE OF PMC:

- (1) The PMC shall act solely as an independent advisor and coordinator to the Society and shall have no ownership, financial interest, or partnership with the Developer. The PMC shall not undertake or assume any role of a Developer or a Contractor related to their assignment as a PMC to Mayank CHS Ltd and ensure that there is No Conflict of Interest neither with the Developer nor with any of their Contractors. The PMC shall perform their Role only in the Interest of the Society and all its Members
- (2) The PMC shall act in a fiduciary capacity for the Society's interests only and not for the Developer. The PMC affirms that it has no existing or proposed financial, business, or personal interest in any

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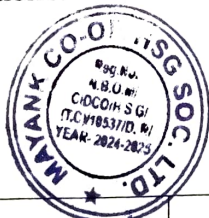
Developer, contractor, or supplier involved in the Project. Any such interest, if discovered, shall be deemed a material breach of this Agreement.

- (3) The PMC shall not have the authority to bind the Society to any contract, commitment, or agreement, unless expressly authorized in writing by the Society.

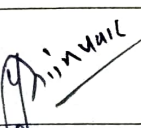
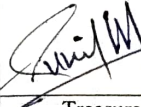
8. OBLIGATIONS OF PMC

(1) Professional Standards:

- (a) The PMC shall perform its Services with the standard of skill, care, diligence, and prudence expected of a qualified PMC experienced in similar redevelopment projects. In case of failure to meet these standards, the Society may engage an independent expert at the PMC's cost to review or rectify its work.
- (b) The PMC shall act solely on behalf of and under the instructions of the Society and shall not act on behalf of or under the direction of the Developer / Promoter in any manner.
- (c) The PMC shall act as a technical advisor to the Society and shall not substitute, discharge, or perform any functions or responsibilities of the Developer's / Promoter's site personnel or consultants, nor shall the PMC be liable for their acts or omissions.
- (d) In all matters relating to the Consultancy Services and Project completion, the PMC shall act as a faithful and independent advisor to the Society, providing professional guidance and recommendations in the best interest of the Society.
- (e) The PMC shall ensure that the Developer strictly adheres to the Development Agreement, sanctioned plans, timelines, and all statutory requirements under RERA, local municipal laws, and UDCPR.
- (f) The PMC shall carry out its Services strictly in accordance with the provisions of this Agreement, including all Annexures, Schedules, approved plans, project timeline and specifications.



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(2) Due Diligence of Developer:

- (a) The PMC shall conduct thorough due diligence of the Developer's credentials, financial capacity, past project performance, and legal compliance before recommending selection.
- (b) The PMC shall not have, directly or indirectly, any financial, shareholding, business, or referral relationship with any Developer, Contractor, Broker, or supplier involved in the Project. Any potential conflict of interest shall be disclosed in writing immediately. Breach of this clause shall constitute a material default, entitling the Society to terminate the PMC.
- (c) Any Developer participating in the tendering process shall not be a stakeholder, shareholder, or partner of the PMC.
- (d) In the event of termination or replacement of the Developer, the PMC shall assist the Society in selecting a new Developer to continue the Redevelopment Project, and any balance fees of the PMC shall be recoverable from the incoming Developer.

(3) Liasoning and other Compliance:

The PMC shall assist, coordinate, and facilitate the obtaining of all statutory and governmental approvals, permissions, and clearances required for the Project and shall monitor and ensure compliance with all applicable laws, rules, regulations, and guidelines under RERA, NMMC, CIDCO Ltd., UDCPR, local bye-laws, fire safety norms, and other applicable statutory authorities.

(4) Quality Assurance and Control:

The PMC shall verify and monitor all materials, workmanship, and execution of work to ensure strict compliance with approved drawings, Detailed Technical Specifications prepared by the Architect and mutually agreed upon by the Developer / Promoter, PMC, and the Society, quality standards, and all applicable statutory regulations, and shall ensure that the Project is executed adopting the best available technical standards and approved construction materials. Any deviation, non-compliance, or deficiency noticed by the PMC shall be promptly reported to the Society in writing, along with recommended corrective measures,



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and the PMC shall continuously monitor quality assurance and quality control throughout the implementation of the Project.

(5) Transparency & Reporting:

- (a) The PMC shall submit to the Society, on a monthly basis or at such shorter intervals as required by the Society, detailed progress reports, material testing and quality-check reports, site photographs, and updated construction schedules/timelines reflecting the actual status of the Project. However, in case of Stoppage or Abandonment of the Job by the Developer and the Society takes the Onus of Executing the Balance of the Project, then the PMC shall be responsible to furnish the Expenditure Statements to the Society
- (b) The PMC shall keep the Society fully informed of each stage of statutory, municipal, and internal approvals.
- (c) The PMC shall be responsible and liable for any errors, omissions, negligence, or oversight attributable to it in the performance of its Services under this Agreement and shall indemnify and keep the Society indemnified against all losses, costs, claims, or damages arising there from.
- (d) The PMC shall perform regular supervision and take all necessary steps to ensure that the Project work is executed in strict accordance with the designs, plans, and specifications approved by the Society and within the agreed scope of Consultancy Services.

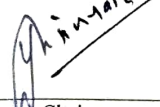
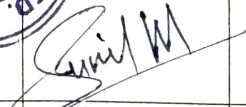
(6) Time-Bound Delivery:

The PMC shall plan, monitor, and regularly review Project implementation to ensure adherence to the approved Project Timelines. The PMC shall promptly identify, report, and recommend corrective measures to the Society in the event of any delay.

- (7) Upon appointment and in accordance with the applicable laws, rules and regulations prevailing as on the Effective Date, including but not limited to UDCPR, and other statutory provisions, the PMC shall prepare and submit a comprehensive Final Feasibility Report, which shall, inter alia, clearly set out the actual plot



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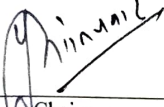
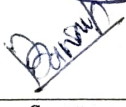
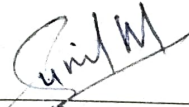
			
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potential, permissible built-up area and RERA carpet area, the saleable area as assessed by the PMC, and the impact of Ancillary FSI and other applicable components; and such report shall be prepared on realistic and prudent assumptions so as to enable the Society and its members to ascertain the minimum entitlement area that ought to be secured from any prospective Developer.

- (8) A dedicated team shall be deployed by the PMC for the Society's redevelopment project.
- (9) The PMC shall submit a detailed workflow chart along with a tentative timeline for execution of the project.
- (10) The PMC shall verify and advice the Society on Bank Guarantees (BGs) furnished by the Developer under the Development Agreement.
- (11) The PMC shall submit, on a weekly and monthly basis, a detailed comparison of the planned timeline vis-à-vis actual progress, along with a comprehensive delay analysis clearly identifying the reasons for such delays and fixing responsibility on the concerned parties.
- (12) The PMC shall promptly report to the Society any delay, deviation, default, or slippage observed in the Project execution, assess the impact thereof, and place its recommendations before the Society for appropriate action. The PMC shall also, wherever applicable, assist the Society in enforcing contractual rights and remedies against the Developer in accordance with the terms of the relevant agreements.
- (13) The PMC shall monitor compliance with the timelines prescribed under applicable laws, regulations, and guidelines, including Section 79A, CIDCO regulations, UDCPR, and Maha



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RERA requirements, and shall promptly report to the Society any risk, delay, or likelihood of non-compliance.

- (14) One copy of each and every document prepared by the PMC and given to Site for Execution shall also be retained at site for record purposes.
- (15) No deviation from the Scope of Services shall be permitted except with prior written approval of the Society.
- (16) The PMC shall not assign, transfer, or sub-contract its obligations without prior written consent of the Society.

9. REPRESENTATIONS AND WARRANTIES OF PMC:

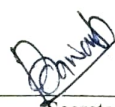
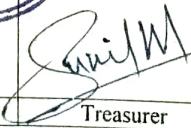
- (1) The PMC represents and warrants that it is duly qualified, experienced, and competent to provide the project management services contemplated under this Agreement, particularly in relation to redevelopment projects of a similar size, scope, and complexity.
- (2) The PMC shall provide all professional, technical, and administrative resources, personnel, and services necessary for the full and proper execution of the Scope of Work contemplated under this Agreement.
- (3) The execution and delivery of this Agreement by the PMC, and the performance of its obligations hereunder, shall not constitute or result in a breach or violation of any Applicable Laws.
- (4) The PMC shall not be held liable for any delay or failure in the performance of its obligations under this Agreement to the extent that such delay or failure is caused by a Force Majeure event.

10. EVENTS OF DEFAULT, CONSEQUENCES AND PENALTIES -

- (1) Any default in form of commission or omission to discharge the services assured under present agreement and envisaged in Annexure A shall be considered as 'Event of Default' on part of PMC;
- (2) Upon noticing such Event of Default the society shall issue an Intimation/ Notice to PMC thereby calling upon to cure, correct such default and restore the matters to their lawful condition



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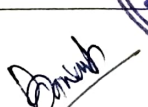
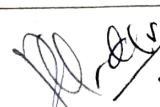
			
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within reasonable period as may be mentioned in such Intimation/ Notice;

- (3) The PMC shall be responsible to communicate in writing to the Developer about the Defects and inform him that all the costs, expenses and charges for restoration/ curing towards rectification of the defects shall be borne by the Developer and incase of default, it shall be recovered from the Developer's Security Deposit;

11. REPRESENTATIONS AND WARRANTIES OF SOCIETY:

- (1) The Society represents and warrants that it is a duly registered co-operative housing society under the provisions of the Maharashtra Co-operative Societies Act, 1960, and is eligible and competent under Applicable Law to undertake the redevelopment of its property.
- (2) The Society further represents that it is the lawful occupant of said property having leasehold rights and possession as necessary to undertake the redevelopment project, free from any encumbrances, claims, or third-party interests.
- (3) The Society confirms that it has complied with the procedures prescribed under applicable laws, government resolutions, and circulars for redevelopment, including conducting the requisite meetings and obtaining necessary approvals from its members.
- (4) The Society confirms that in the duly convened Special General Body Meeting (SGBM) held on 21/06/2026 a resolution was passed appointing the PMC for providing Project Management Consultancy services for the proposed redevelopment of the Said Property, and that such appointment is valid and binding.
- (5) The Society undertakes that it shall provide the PMC with timely access to all necessary project-related documents, records, approvals, plans, and correspondence required for the performance of the PMC services.
- (6) The Society shall cooperate with the PMC in good faith and provide necessary support, including approvals and decisions, within a reasonable time so as not to cause undue delay in the PMC's services.

			
			
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- (7) The Society shall ensure timely payments of all invoices raised by the PMC in accordance with the terms of the Agreement and shall not withhold payments without valid reason or notice.
- (8) The Society shall not assign, transfer, or delegate its rights and responsibilities under this Agreement to any third party without the prior intimation to the PMC, except as may be required by law.
- (9) The Society shall ensure that no third-party consultant, developer, contractor, or agent appointed by the Society interferes in the duties of the PMC, unless such coordination is expressly required or permitted under this Agreement.

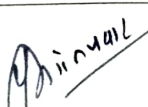
12. VARIATION IN SERVICES:

- (1) The Scope of Services may be modified only with the mutual agreement of both Parties in writing. The PMC shall be entitled to fair and reasonable remuneration as mutually agreed by both the parties.
- (2) In the event that any variation in scope affects other ongoing or scheduled services of the PMC, the same shall be clearly identified and communicated by and between the PMC and the Society. The Parties shall then mutually agree upon appropriate modifications to the timeline, as necessary to reflect the impact of such variations.
- (3) Where variations are numerous in nature or are likely to have a cumulative or consequential impact on other services, activities, the Parties shall make their best efforts to introduce and implement such variations in a consolidated and structured manner, rather than on a piecemeal basis.

13. CONFIDENTIALITY AND NO DISCLOSURE:

- (1) The PMC shall maintain strict confidentiality of all data, documentation, and communications related to the redevelopment project and shall not share any information without the Society's prior written consent.
- (2) No Party shall disclose Confidential Information to any third party without prior consent, except to employees on a need-to-know basis, to auditors or consultants, to where disclosure is required by law.



			
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- (3) Confidentiality does not apply to information that is publicly available.

14. TERMINATION BY THE SOCIETY:

- (1) The Society shall have the right to terminate this Agreement at any stage upon giving a written notice of 30 (Thirty) days, in the event of any of the following:

- a) Any direct or indirect financial relationship, commission, consideration or arrangement, between the PMC and developer, any contractor, vendor, supplier or service provider, without prior written disclosure and approval of the Society, shall constitute a material breach, entitling the Society to terminate this Agreement.
- b) Any mismanagement of the Project, failure to detect defects, or failure to ensure safety, quality or statutory compliance by the PMC, which results in or is likely to result in: i) Structural issues, ii) Project delays and iii) Legal disputes.
- c) Failure of the PMC to perform its obligations, duties or responsibilities under this Agreement to the satisfaction of the Society.
- d) Any act of gross negligence, misconduct, professional incompetence, or breach of accepted professional standards by the PMC.
- e) Breach of confidentiality, conflict of interest, or engagement in corrupt, fraudulent or unethical practices, including any undisclosed financial or beneficial interest with the Developer, Contractor or Vendor.
- f) Non-submission of progress reports, statutory compliance reports, or other critical documents for a period exceeding two (2) consecutive months.

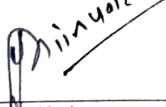
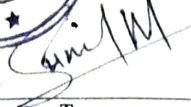
- (2) Where any default or breach is curable in nature, the PMC shall be granted a cure period of 15 (Fifteen) days from receipt of the termination notice to remedy such breach. In the event the breach is not cured within the said period, this Agreement shall stand terminated automatically without any further act or notice.

- (3) Without prejudice to the foregoing, the Society shall also have the absolute right to terminate this Agreement at its sole discretion,

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without assigning any reason whatsoever, upon issuance of the said notice.

15. **TERMINATION BY PMC:**

The PMC shall be entitled to terminate this Agreement upon Non-payment of undisputed and duly invoiced consultancy fees by the Society for a continuous period exceeding 60 (Sixty) days from the date the same becomes due and payable.

16. **CONSEQUENCES OF TERMINATION:**

Upon termination of this Agreement for any reason whatsoever:

- (1) No further payment shall be due or payable to the PMC, except for the approved value of Services actually performed up to the effective date of termination and to the satisfaction of the Society, after due verification.
- (2) The PMC shall immediately handover to the Society all project-related documents and records, drawings, designs, reports, site records, correspondence, contracts, approvals, data, and statutory submissions, in both physical and electronic/digital formats within 7 (seven) days from the date of termination.
- (3) Upon termination of the PMC's services, the Society shall be at full liberty to appoint any other PMC or consultant to complete the remaining work, and the outgoing PMC shall extend full cooperation to ensure a smooth transition.

17. **SETTLEMENT OF DISPUTES:**

- (1) The Parties shall use their best efforts to settle amicably all disputes arising out of or in connection with this Agreement or the interpretation thereof.
- (2) All disputes, differences or claims arising out of or in connection with this Agreement, including its interpretation, performance, breach, termination or validity, shall be referred to arbitration in accordance with the provisions of the Arbitration and Conciliation Act, 1996, as amended from time to time.
- (3) The arbitration shall be conducted by a sole arbitrator, mutually appointed by the Society and the PMC. In the event the parties fail

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to agree upon the appointment of the sole arbitrator within 15 (Fifteen) days from the date of a written request by either party, the arbitrator shall be appointed in accordance with the provisions of the said Act.

(4) The seat and venue of arbitration shall be Navi Mumbai, Maharashtra.

The language of arbitration shall be English. The arbitral award shall be final, binding and enforceable upon both parties.

IN WITNESS WHEREOF 'THE SOCIETY' AND 'THE PMC' HAS PUT THEIR HAND(S) ON THIS "PROJECT MANAGEMENT CONSULTANCY AGREEMENT" ON THE DAY AND YEAR FIRST MENTIONED HEREIN.

**SIGNED SEALED AND DELIVERED BY
THE PARTY OF THE FIRST PART**

**"MAYANK CO-OPERATIVE HOUSING
SOCIETY LTD"**

REPRESENTED THROUGH ITS

CHAIRMAN

Mr. Prashant Pawar



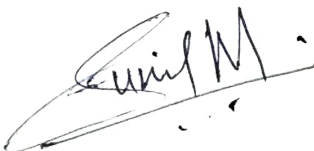
SECRETARY

Mr. Bhaskar Sawant

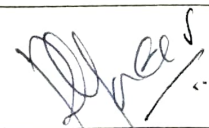


TREASURER

Mr. S M Suryavanshi



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SIGNED SEALED AND DELIVERED BY

THE PARTY OF THE SECOND PART

M/S VASTOSPATI DESIGN GROUP

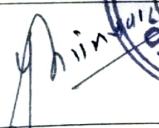
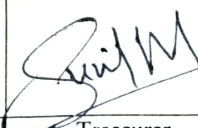
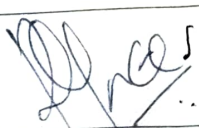
REPRESENTED THROUGH ITS PROPRIETOR

MR. P. K. MADHAV


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A-304/304, Shiv Chambers, Plot No-21,
Sector-11, CBD Belapur, Navi Mumbai.

IN PRESENCE OF WITNESSES:

1. E. M. MURALEEDHARAN : 
2. V. M. Athinave 

 Chairman	 Secretary	 Treasurer	 Mr. P. K. MADHAV PMC
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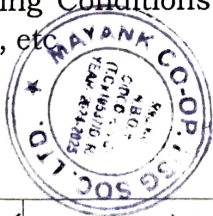
ANNEXURE A SCOPE OF WORK

STAGE I - PRE-TENDERING STAGE:

- Co-ordinate and get property documents such as PR Card, Property MAP, TD/DP Remarks, etc., from respective authorities at your cost.
- Ascertaining the Carpet area & Built-Up area of each flat as per existing approved Plan & prepare unit wise area details such as Carpet, Built up & RERA Carpet of existing members of each flat under the prevailing rules & regulations of NMMC/CIDCO. and carry out Plot Area Survey with Total Station Instrument. The Survey shall be carried out at site to verify the Actual Area of Plot available at site with respect to the PR Card at your cost.
- Preparing a feasibility report in all aspects with respect to the prevailing UDCPR provisions and other government policies about the utilization of FSI/premium FSI /TDR/Ancillary FSI, with options (i) Residential (ii) Residential + Permissible Commercial
- Recommending the list of amenities including parking plan, extra area, corpus fund etc. and preparing block designs of the building as per the utilization of FSI and explaining the feasibility report to the society before and modifying the same including the suggestions from the members within the provisions of law.
- Providing assistance for conducting SGBM as per the provisions of Govt. guidelines as per section 79A of MCS Act.

STAGE II - TENDERING STAGE

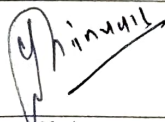
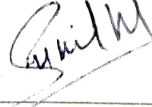
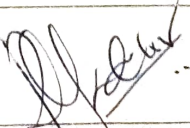
- Discuss the requirements of Society Members before inviting tenders.
- Based on the discussions, finalize the Tender Documents including Conditions of Contract, Specifications, Commercial Terms, etc.



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- Inviting offers (Technical and commercial) from various builders/developers, conducting the process of bid opening as per the best practices and in a transparent way, doing the technical evaluation, preparing a comparison statement, and submitting the bid evaluation report to Committee & Redevelopment Committee members
- Providing assistance in finalizing the most suitable developer by conducting meetings jointly with the short-listed Builders/Developers along with the committee & Redevelopment Committee members.
- Prepare Draft Letter of Intent (LOI) based on the negotiated Terms and Conditions.
- Provide Technical and Engineering inputs in the Development Agreement (DA) prepared by the Developer / Society's Counsel.

STAGE III - CONSTRUCTION STAGE:

- Approve the plans prepared by the Developer to safeguard the Society's interests.
- Prepare Bar Charts and Schedules for the timely completion of the project.
- Co-ordinate with Society, Developer, Architects and Structural Consultants.
- Verify drawings issued to site for construction.
- Monitor work progress as per agreed construction schedule.
- Supervise the work at every stage and maintain record of the approximate material consumption and other activities of work.
- Coordinate for periodic tests of various construction materials from approved labs.
- Depute Project Engineer and/or Qualified Supervisor at various stages to check quality of work and expedite the progress of work. The PMC shall depute their Engineer for 4 days in a week for 1-2-hour duration daily and for the entire day on the days of major concreting.
- Attend Monthly/Quarterly Periodic Coordination Meetings with the Developer and the Society.
- Submit Progress Reports on a periodic basis.
- Ascertaining the preparation of all detailed Electrical, Fire Fighting and Plumbing layouts.



VASTOSPATI design group
Architects
Ar. P. K. MADHAV
A-304/304, Shiv Chambers, Plot No-21,
Sector-11, CBD Belapur, Navi Mumbai.

			
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- Ascertaining the preparation of all working drawings and structural drawings.
- Ascertaining / conducting various soil investigations to decide and select the required material or construction techniques at the time actual work of the foundation.
- Ascertaining the submission of the proposed layout and approval.
- Ascertaining layout approval.
- Ascertaining the submission of the building permission proposal to various Authorities.
- Assisting / Obtaining of Commencement Certificate.
- Preparation and issue of change notices, indicating any change in the project which will affect costs, planning etc.

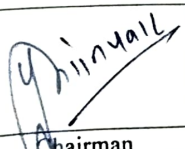
STAGE IV- COMPLETION STAGE

- To assist obtaining various Completion Certificates, Occupancy Certificate, Building completion Certificate.
- To assist obtaining various Service connections such as permanent water connection, Electricity Connection, Gas Pipeline Connection, etc.
- To assist in preparation of 'as-built' drawing
- Preparing a completion report as the end of the project.
- Provide technical assistance for identification and rectification of defects during Defect Liability Period of the Developer'
- Execution of possession letters.
- Submit as build drawing, service manuals and maintenance schedule to the Society.



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